3603

Executive Order

By virtue of the authority vested in me by Act of August 24, 1912, c. 390, sec. 8, it is

ORDERED, That the within Rules of Court shall be in force in the United States District Court, in and for the Canal Zone, on and after this date.

All previous orders in conflict with this order are hereby repealed.

WARREN G HARDING

THE WHITE HOUSE,
December 30, 1921.

[No. 3603.]

Amended
No. 4276
6
47:915 119

UNITED STATES OF AMERICA

RULES OF

PRACTICE AND PROCEDURE

OF THE

UNITED STATES DISTRICT COURT

IN AND FOR THE CANAL ZONE

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UNITED STATES DISTRICT COURT
IN AND FOR THE CANAL ZONE

RULES OF COURT

1.

Sessions of Court.

There shall be a session of the court held in the Balboa Division each month, beginning on the first Tuesday; and there shall likewise be held a session each month in the Cristobal Division, beginning on the third Monday.

Provided, however, the court may at any time, for good cause shown, suspend a term of court, or order a special term in either Division.

2.

Terms of Court.

Fifteen days following the opening of a regular session in either Division will constitute a term of court in and for such Division, but any cause pending in one Division may, by consent of parties, or upon order of the court, be heard in the other Division.

3.

Court Dockets.

In addition to the dockets prescribed by law, for the purpose of expediting the business of the court, the Clerk, under the advice of the Judge, and the District Attorney, may cause to be prepared such additional dockets as, in their judgment, may be necessary for such purpose.

4.

Motion Days and Dockets.

There shall be established in the Balboa Division one day in each week for the hearing of motions, entering decrees, assigning causes for trial, confirming reports, taking default judgments, and generally any matter in the conduct and preparation of causes, other than trials, which day, unless otherwise ordered by the Court, shall be on Saturday, beginning at 9:15 a. m.

All motions, or other hearings, not consented to, must be made in writing, filed with the Clerk, and by him noted upon a book to be known as the "Motion Docket", before the close of the Clerk's office on Thursday preceding the Saturday on which such motion is to be heard; provided, any motion may be heard by consent at the conclusion of the regular Motion Docket, or by direction of the Judge, if it be urgent.

There shall be likewise established a similar motion day in the Cristobal Division to be held on the first and third Mondays in each month, and all motions must be placed on the Motion Docket, in like manner, not later than Friday preceding the Monday upon which it is to be heard.

5.

[illegible]cing Motion on Docket is Notice.

Any motion filed with the Clerk and by him placed upon the Motion Docket shall be notice to opposing counsel, and no further notice need be given, except in those instances where the Code of Civil Procedure requires notice to be otherwise served.

6.

How Pleadings and Motions May Be Filed.

A demurrer to any pleading may be filed with the Clerk, and when so filed shall be placed by the Clerk upon the Motion Docket for disposition at the motion day next succeeding.

An answer may be filed in the Clerk's Office, if filed within the time prescribed by the Code of Civil Procedure. If the time within which an answer, or any other pleading, must be filed shall have expired, it can be filed thereafter only by consent of the Court. Any pleading which the Court directs to be filed within a given time may be filed in the Clerk's Office, if filed within the time prescribed.

Any motion may be filed in the Clerk's Office, unless there be some order of Court or rule of procedure which prohibits the filing of such motion; and all pleadings or motions filed with the Clerk must be noted of record by him.

7.

Jury.

When in the trial of any cause, criminal or civil, either party shall desire a jury, request therefor must be made at the time when such cause is assigned for trial, and at the trial each side shall be entitled to six peremptory challenges.

8.

Pleadings in Civil Actions.

All complaints and pleadings in civil actions shall be signed by the attorney or party to the suit, or his duly authorized agent or representative, and shall be endorsed on the back thereof with the docket number, the name or names of the parties plaintiff and defendant, the nature of the action, the return date of the summons, and the name of the attorney of record.

There shall be filed with the original of all complaints and pleadings a copy thereof for the adverse party, which said copy shall be endorsed on the back in the same manner as the original.

9.

Time for Filing Bill of Exceptions.

All bills of exceptions must be prepared, settled and filed within the time now fixed by the Codes of Criminal and Civil Procedure; provided, however, that the Court for good cause shown, may extend such time for an additional time beyond the expiration of the term, as in his judgment may appear proper; provided further, that an additional extension of time beyond that granted by the Court, may be allowed by agreement of all parties in interest.

10.

Motion for New Trial.

The application for a new trial shall be made to the Court during the term in which the verdict or finding of the Court is rendered.

Such motion shall be in writing and must set out specifically the grounds upon which such application is made, except that the party aggrieved may, at the time such verdict or finding of the Court is rendered, make oral announcement in open court of his intention to file a motion for a new trial, and the Court may, in its discretion, grant such reasonable time, upon a proper showing, within which such motion shall be reduced to writing and presented to the Court, and thereupon such motion shall be filed nunc pro tunc as of the date of the oral announcement.

All motions for new trial should be made after the verdict or finding of the issues by the Court, and must be made before final judgment has been rendered therein.

And, if any question be raised in the motion for new trial as to the admissibility of evidence, the question, ruling, and exception must be fully set out.

11.

Bonds to be Recorded.

All fiduciary bonds, attachment bonds, bonds required to be executed in all matters of receivership, injunction proceedings, any and all other bonds required by the Code of Civil Procedure, except bonds for cost, bonds for arrest, or appeal from inferior courts, shall be copied in full and properly indexed by the Clerk in a book kept for that purpose, and such copy, duly authenticated by him, shall have the force and effect of the original, and the cost of recording shall be taxed as part of the cost in any court proceeding, action, or settlement.

12.

Attorneys on Bonds.

Attorneys will not be accepted as sureties upon bonds or recognizance required to be filed in court.

13.

Bonds and Costs.

The Court may at any time before trial require a nonresident plaintiff to file an undertaking for costs. The defendant may at any time move for security for costs, and when the motion is made the nonresidence must be shown by affidavit, unless it is admitted, or it appears upon the papers or from the record.

14.

Bonds.

In all proceedings in court in which a bond is required to be given the Clerk of the Court may accept a cash deposit in the sum of the bond, or a personal bond, with approved security, may be given. Where a cash bond is given the money deposited with the Clerk can be withdrawn only upon application to and order from the Court.

Either the principal in a personal bond, or one of the sureties, if there be more than one, shall be a resident of the Canal Zone.

15.

Motion to Vacate or Set Aside Judgment.

All motions to vacate or set aside judgments must be in writing and signed by the party applying therefor, or his attorney of record, and must be made during the term at which the judgment is rendered.

Such motions shall not operate as a stay of execution, unless the Court for good cause shown shall so order, or the party applying therefor shall execute a supersedas with good and sufficient security to be approved by the Court.

16.

Exceptions During Trial.

If either party desires to save exceptions to the admissibility of testimony, such objection, with the reason therefor, if required, must be made before answer is made by the witness, and exception thereto be made at the time. A failure to do this will deprive the party so failing to urge the admissibility of such evidence as a ground for a new trial.

17.

Filing Informations.

All informations shall be filed by the District Attorney not later than Saturday prior to the regular term of the criminal session of court, in all felony charges, where it can be done; provided, however, such information may be filed before trial during a regular session of the criminal term, or at a special hearing by order of the Court.

18.

Time for Making Defense.

In all actions where personal service has been had, the person served shall make defense in court within ten days from the service of the summons; and where service by publication is had, within forty days from the last publication of service.

19.

Time Within Which Court Orders Must Be Prepared.

When a written order is taken in court, and the attorney for either side is directed to prepare the order so taken, it shall be prepared and presented to the Clerk not later than five days thereafter, having been first presented to the Judge of the court for approval.

20.

Argument of Motions.

No argument of any motion shall be extended beyond thirty minutes to the side without permission of the Court.

21.

Stenographic Notes.

Whenever, in the discretion of the Court, the importance of the case demands, the Judge may cause the testimony in the case, or such part of the testimony as he may deem proper, to be taken down in shorthand by the official court reporter connected with the court and qualified to do such work, and the testimony so taken shall not be transcribed unless so directed by the Judge. Provided: upon approval of the Court, any lawyer practicing before the court may have his own stenographer in attendance for the purpose of reporting a case for his own personal use.

The original stenographic notes, taken by the court reporter, shall be made a part of the proceedings in the cause; and, unless such notes are filed pursuant to an order of the Judge, directing the stenographer to file forthwith with the Clerk, or within a specified time, the original stenographic notes, the same must be carefully preserved by the court reporter for at least twelve months after the final judgment of the court is rendered.

Whenever the official court reporter takes down the testimony in a case, the party making application for such work, except it be the Government, shall reimburse to the Government of the Canal Zone the actual time of the court reporter while thus engaged, no fractional part of a day less than a half day to be calculated; unless for good and sufficient cause shown the Court shall waive this charge.

The court reporter must furnish, upon request, with all reasonable diligence, to the defendant in a criminal cause, or a party or his attorney in a civil cause, a transcript written out at length from his stenographic notes of the testimony and proceedings, or a part thereof, upon payment by the person requiring the same of the fees allowed the court reporter and prescribed by the Judge.

22.

Summons.

The summons issuing from the court should read as follows:

UNITED STATES OF AMERICA

—Canal Zone—

IN THE UNITED STATES DISTRICT COURT OF THE CANAL ZONE

—Division of .....—

.... Plaintiff v. .... Defendant	No. ..... Civil SUMMONS

To.....

.....

You are hereby notified to enter your appearance in the office of the Clerk of the above mentioned Court, in writing, and make answer hereto, within ten (10) days after the service of this summons and copy of the complaint which is hereto attached, if service be had within the Canal Zone.

And, if served outside of the Canal Zone, you are notified to enter your appearance forty (40) days after service, and make answer thereto.

Upon failure to appear within the time aforesaid, the plaintiff will take judgment against you by default, and demand from the said Court the relief applied for in the complaint.

WITNESS the Honorable .....

United States District Judge for the Canal Zone,

this ..... day of ..... 19.....

.....
Clerk

23.

Preparing Court Orders.

All orders, minutes of proceedings, or actions taken in court, and required to be made matters of record, must be prepared and ready for the signature of the Judge of the court not later than one week from the date when made.

ADMIRALTY CASES.

24.

General.

The rules promulgated by the Supreme Court of the United States as of date of March 7, 1921, governing proceedings in admiralty, shall apply and be in force in all admiralty proceedings in this court.

25.

Verification.

Pleadings in rem or in personam, claims and answers to interrogatories, except on behalf of the United States, shall be verified by the oath or affirmation of the party, or in his absence, by his agent, attorney in fact, or proctor. If such verification be made by the agent, attorney in fact, or proctor, it shall state the source of his knowledge or information; declare that the document verified is true to the best of his knowledge, information, and belief, and the reason why the verification is not made by the party.

26.

Amendments.

Amendments, or supplementary matters, must be connected with the libel or other pleadings by appropriate reference, without recapitulation or restatement of the pleading amended or added to.

27.

Security for Costs.

No libel, petition, or answer shall be filed, except on the part of the United States, and in suits for seamen's wages, and suits in forma pauperis, unless the party offering the same shall first file a bond or stipulation for costs, with two or more sufficient sureties, one of whom shall reside or maintain a place of business within the Canal Zone, conditioned that the principal shall pay all costs awarded against him by this court, and, in case of appeal, by the appellate court.

In suits in personam, such bond or stipulation shall be in the sum of $100; in suits in rem, or where process of foreign attachment is to be issued, the bond or stipulation shall be in the sum of $250.

Salvors coming into port in possession of the property libeled, petitioners for money in the Registry of the Court, and The Panama Canal, shall not be required to give such security.

28.

Bonds and Stipulations.

Unless otherwise ordered and approved by the Court, all bonds and stipulations for costs, for the discharge of property arrested, for stay of execution of any process in rem, or in any other case wherein a bond or stipulation is required of the party appearing in the suit, under the statute or the admiralty or equity rules of the court, shall be executed and delivered by the party with two or more sufficient sureties, one of whom shall be a resident or maintain an office and place of business within the Canal Zone, conditioned to answer the final decree of the Court, whether such decree shall be rendered in the original or the appellate court.

In lieu of sureties, the party may file his stipulation conditioned as above set forth, accompanied by the deposit of cash, or the manager's check of a solvent bank, or United States bonds in the amount or sum required, the same to be delivered to the Marshal, or deposited in the Registry of the Court, as the exigency of the case may demand, and such cash, manager's check, or United

States bonds shall be subject to all money demands of parties to the suit, as may be determined by the final decree of the court; Provided, the bond of any responsible surety company in the United States, and acceptable to the Court, may be taken in lieu of the security and surety above mentioned, on the condition that the bond so given and taken shall waive all questions as to the jurisdiction of the court to enter judgment in any proceedings wherein said bond shall have been given.

29.

Return Day of Process.

Original process on libels and information shall be made returnable on the first Monday of each month at a stated or special term; provided, that twenty running days have elapsed since the last publication of a monition or the service of process; and in cases where such delay of twenty days shall not have expired on the first Monday of the month, said process shall be returnable on the third Monday of the same month.

Upon process in rem, the return shall state the day of seizure or of sale, as the case may be.

30.

Release of Property on Bond.

The Marshal shall stay execution of any warrant of arrest or other process in rem, or discharge the property arrested, upon receiving from the claimant a bond or stipulation for double the amount claimed by libellant, with sufficient surety, approved by the Judge, or, in his absence, by the Marshal, conditioned to answer the decree of the Court in the cause, as provided in Section 941 of the United States Revised Statutes, as amended by the Act of Congress approved March 3, 1890 (30 Statutes, 1354). The bond so taken shall run in favor of the Marshal for the benefit of all parties in interest, and shall be immediately delivered by the Marshal to the Clerk of the court, who shall file the same in the record.

But the parties to the suit may, by written agreement filed in the cause, consent that the stipulation shall be reduced to such an amount as they may deem sufficient to secure the claim of the libellant and intervenors and costs, without in any manner impairing its validity.

In salvage cases the amount of the release bond shall be fixed by the Court or by agreement between the proctors for the libellant and claimant.

31.

Amount to be Stated.

In all suits, except for salvage, the amount claimed by the libellant or intervenors must be specifically stated in their pleadings.

32.

Clerk to Issue Process.

The Clerk or Assistant Clerk of the court is authorized to issue all admiralty and other process without any special order, except in cases where the statute or the admiralty or equity rules require an order of the Court, or of the Judge, to authorize process. He may also issue all writs of dedimus potestatem and commissions to take depositions of absent witnesses, as authorized by the Act of Congress approved March 9, 1892, but shall issue letters rogatory only when ordered by the Court.

33.

Mesne Process.

Mesne process may be either in personam or in rem or both.

Process in personam may be:

(1) A simple citation in the nature of a summons to appear and answer to the suit.

(2) Such a citation, with a clause therein that if the respondent cannot be found, his goods and chattels to the amount sued for be attached.

(3) Such a citation and attachment, together with a clause of foreign attachment of the respondent's property and credits to the amount sued for in the hands of garnishees named therein.

The names of the garnishees and the specific property in their hands, if known, shall be stated in the libel or petition and in the process, and the garnishees shall be cited to appear and answer on oath.

(4) A warrant of arrest of the person shall issue only upon the special order of the Court alone, or with an attachment.

In suits in personam, except on a libel for liquidated damages not exceeding $500, no process of attachment or foreign attachment shall issue, unless allowed by special order of the Court, upon due proof of the demand and of the propriety of the attachment being first made.

Process in rem shall be:

(1) By a warrant to arrest the ship, goods, or other things to be arrested, with a monition to all persons interested therein, and shall be issued as, of course, by the Clerk of the court upon the filing of the libel and security for costs.

34.

Division of Docket Fee and Costs.

In cases for salvage, when several parties are entitled to participate therein, the docket fee and costs taxable by statute in favor of the prevailing party shall be divided equally among the proctors of the respective parties who share in the salvage.

35.

Libels—When to Stand as Interventions.

When property is already under seizure by process of this court, all libels filed against the same property shall stand and be considered as interventions in the original case, and but one proctor's fee shall be allowed, which shall go to the proctor in the original cause. The Clerk shall be authorized to make all orders permitting interventions to be filed in all proceedings in rem.

36.

Payment Into Court.

In all actions for sums certain, the claimant or respondent may pay into court the amount claimed in the libel, with accrued interest and costs, and may thereupon have an order entered, instanter, for the restoration of his property.

37.

Stipulations on Intervening Libels.

Any third person who shall intervene in any cause of admiralty, and maritime jurisdiction in rem shall be required to give a stipulation, with surety in the sum of $25, to abide by the final decree rendered in the cause, and pay all such costs, expenses and damages as shall be awarded by the Court upon final decree, whether it is rendered in the original or appellate court, and such intervenor shall also deposit the sum of $10 with the Clerk to secure his costs.

38.

Deposits for Costs.

Neither the Clerk nor the Marshal shall be required to issue or serve any process, or to perform any service for parties, until their costs and the necessary expenses incident to the service shall be paid or secured to their satisfaction, except in cases of seamen's wages and suits in forma pauperis.

39.

Publication of Process.

Upon any seizure in suits in rem, or upon any information in rem or in personam wherein publication is required by law, such notice shall be published once unless the Court by special order, directs other or further publication. Publication hereunder, unless otherwise ordered, shall be at least one week before the date on which the process is made returnable. The published notice need contain only the title of the suit, the nature of the cause of action, the amount demanded, the time and place of the return of monition and the names of the Marshal and proctor, and shall direct all persons interested to appear or that default and condemnation will be ordered.

40.

Publication Notice of Sale.

Public notice of the sale of property after condemnation in suits in rem, shall be made by publication in a newspaper of general circulation within the Canal Zone, for at least six successive days, unless otherwise ordered in the decree, the last publication thereof to be at least fifteen days before the date of said sale, as provided in U. S. Revised Statutes, section 939. (U. S. Comp. Statl., 1918, Sec. 1565.)

41.

Testimony to be taken before a Commissioner.

In all cases of admiralty and maritime jurisdiction the evidence of witnesses present at the place where the court is held shall be taken orally before a Commissioner, upon at least one day's notice to the opposite party; provided, that either side may set the case for trial in open court on the question of liability, in which event all witnesses within the jurisdiction will be heard orally. The stenographer employed shall be entitled to receive twenty-five cents per hundred words as compensation for his services, and shall furnish one copy of the evidence to the proctor for the opposite party, without charge, when requested.

42.

Evidence by Written Interrogatories.

Evidence taken under dedimus potestatem, or under commission as provided in the Act of Congress approved March 9, 1892, shall be by written interrogatories propounded to the witness, filed in the Clerk's office, and a certified copy of the same shall be served on the opposite party, together with a notice by the Clerk that he is required to file cross-interrogatories, if any he has, within five days from a date to be specified in such notice.

In case the opposite party is absent from the Canal Zone and not represented by an attorney, service on the interrogatories and notice to cross may be made by posting the same at the court house for the period of five days.

At the expiration of the time so allowed the Clerk, or Assistant Clerk, shall issue the proper writ or commission.

43.

Time for Taking Evidence.

After issue joined, the libellant shall have sixty days in which to take his evidence, and thereafter the claimant or respondent shall have the like time to take his evidence, and no more, unless for cause shown the Court shall enlarge or restrict the time, and provided the case is not heard in open court.

44.

Notice to Set Cause for Trial.

After the expiration of the time for taking evidence has expired, either party may set the cause down for trial on motion upon five days' notice, served

on the adverse party or his proctor; but, in case the adverse party be absent and not represented, the notice may be served by posting the cause for trial at the court house for the period of five days.

45.

Certificate of Counsel, and Affidavit to Exceptions, etc.

Every exception or plea to a libel or intervening libel shall be accompanied by a certificate of counsel that, in his opinion, it is well founded in law, and be supported by affidavit of the party or his proctor that it is not interposed for delay, and that the facts stated therein are true to the best of his knowledge, information and belief.

46.

Intervening Libels.

No intervening libel setting up a claim either or in addition to the amount claimed in the original libel, whereby the liability of the surety on the release bond would be increased, shall be allowed in any case after the property seized has been released.

47.

Trial on Libel and Answer.

The libellant shall have the right, upon the coming in of the answer, to set the cause down for trial on the libel and answer in all cases where the facts are substantially admitted, and nothing remains but question of law for decision. In such cases the averments of the answer, well pleaded, except averments of law, shall, for the purpose of the trial, be taken as true.

48.

Interventions in Rem.

Interventions filed in proceedings in rem shall be considered as denied, and need not be answered, but parties whose interests are involved may, at their option, plead, answer or demur thereto.

49.

Third Party Practice.

If a defendant shall, by petition on oath, filed before answer, or within such further time as the Court may allow, allege fault in any other party, in respect of the matters complained of in the libel, or shall allege that he is entitled to contribution or indemnity from any other party in respect of such matters, and shall pray that such other party be brought into the suit as a party defendant in analogy with the provisions of Admiralty Rule 57 of the Supreme Court of the United States, process on such petition may be issued and the cause shall proceed otherwise as in cases under the 57th Rule.

50.

Note of Evidence.—Testimony to be Bound, etc.

Before the final hearing each party shall file with the Clerk a written list of the testimony and proofs on which he wishes to be heard, with all such testimony and proofs, and no testimony and proofs not so listed and filed shall be considered by the Court or be included in the record on appeal. The testimony shall be bound, consecutively paged, and indexed. No case shall be set down for argument or final hearing until this Rule has been complied with.

51.

Objections to Evidence.

No objection to the admissibility of evidence taken under Rule 41 shall be considered unless noted at the time the evidence is taken, nor shall any objec-

tions to interrogatories propounded to witnesses examined under commission be considered unless made by the opposite party at the time cross-interrogatories are filed or before the commission issued; and parties making objection or objections to the manner and form in which a commission has been executed shall do so by motion to suppress.

52.

Confirmation of Commissioners' Reports.

Exceptions to Commissioners' Reports shall be filed within twenty days after the date of the filing of the Report. Should no exceptions or opposition be filed within said delay, the report may be confirmed on motion of counsel.

53.

Matters Not Specifically Provided For.

In any matter not provided for in the general admiralty rules of the Supreme Court of the United States or in these rules, the rules of practice in admiralty in the United States District Courts of the Southern District of New York shall be made applicable and apply in this court.

GOVERNMENT PRINTING OFFICE